

25VECV00592 25VECV00592

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25VECV00592 Hearing Date: September 24, 2026 Dept: I

25VECV00592 PENA v. LOS ANGELES

UNIFIED SCHOOL DISTRICT, et al.

September 24, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion to Dismiss Action for Failure
to Prosecute

I.

Background

This is an intentional tort action arising out of a physical assault against Plaintiff Sergio Pena ("Plaintiff"), which occurred at West Valley Occupational Center while Plaintiff was under the custody and/or control of Defendants Los Angeles Unified School District ("LAUSD"); Los Angeles County Office of Education ("LACOE"); City of Los Angeles (the "City"); County of Los Angeles (the "County"); West Valley Occupational Center ("WVOC"); John Doe ("Doe"); and DOES 1 through 50 (collectively, "Defendants"). On February 3, 2025, Plaintiff filed the operative Complaint against Defendants, alleging causes of action for: (1) Assault; (2) Battery; (3) Intentional Infliction of Emotional Distress; (4) Negligent Hiring, Supervision, & Retention of an Unfit Employee; and (5) Negligence.

On June 2, 2025, LAUSD filed an Answer to the Complaint.

On June 3, 2025, Plaintiff voluntarily dismissed LACOE without prejudice. On June 24, 2025, Plaintiff voluntarily dismissed the County without prejudice. On July 29, 2025, Plaintiff voluntarily dismissed the City without prejudice.

On September 4, 2025, default was entered against WVOC. On November 10, 2025, Plaintiff voluntarily dismissed WVOC without prejudice.

On March 2, 2026, Plaintiff filed an Amendment to the Complaint identifying Doe as Dina Diment (hereinafter, "Diment"). On April 10, 2026, Diment filed an Answer to the Complaint.

On August 7, 2026, LAUSD and Diment filed the instant Motion to Dismiss Action for Failure to Prosecute. Any opposition would have been due on August 24, 2026 per California Rules of Court, rule 3.1342, subdivision (b). To date, no opposition has been filed.

II. Discussion

"Discretionary dismissal is addressed by sections 583.410–583.430." (*Scarzella v. DeMers* (1993) 17 Cal.App.4th 1762, 1768.)

Pursuant to Code of Civil Procedure

Section 583.410, subdivision (a), "The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." (Code Civ. Proc., § 583.410, subd. (a).)

"Section 583.410 allows the court to dismiss a case for delay in prosecution pursuant to rules adopted by the Judicial Council." (*Kidd v. Kopald* (1994) 31 Cal.App.4th 132, 147; see also Cal. Rules of Court, rule 3.1340, subd. (a) ["The court on its own motion or on motion of the defendant may dismiss an action under Code of Civil Procedure sections 583.410-583.430 for delay in prosecution if the action has not been brought to trial or conditionally settled within two years after the action was commenced against the defendant."].)

Code of Civil Procedure Section

583.420, subdivision (a) states in pertinent part as follows: "The court may

not dismiss an action pursuant to this article for delay in prosecution except after one of the following conditions has occurred:

(1) Service is not made within two years after the action is commenced against the defendant.

(2) The action is not brought to trial within the following times:

(A) Three years after the action is commenced against the defendant unless otherwise prescribed by rule under subparagraph (B).

(B) Two years after the action is commenced against the defendant if the Judicial Council by rule adopted pursuant to Section 583.410 so prescribes for the court because of the condition of the court calendar or for other reasons affecting the conduct of litigation or the administration of justice.

(3) A new trial is granted and the action is not again brought to trial within the following times:

(A) If a trial is commenced but no judgment is entered because of a mistrial or because a jury is unable to reach a decision, within two years after the order of the court declaring the mistrial or the disagreement of the jury is entered.

(B) If after judgment a new trial is granted and no appeal is taken, within two years after the order granting the new trial is entered.

(C) If on appeal an order granting a new trial is affirmed or a judgment is reversed and the action remanded for a new trial, within two years after the remittitur is filed by the clerk of the trial court."

(Code Civ. Proc., § 583.420, subd. (a).)

"While the discretionary dismissal statute was enacted for the benefit of defendants named in lawsuits, it was

also enacted for the public's benefit, i.e., to expedite the administration of justice by declogging court calendars and putting an end to elderly cases.” (Reid v. Balter (1993) 14 Cal.App.4th 1186, 1196.) Furthermore, “[p]ast California decisions have affirmed dismissals as an exercise of inherent power in two situations. First, because delay in prosecution interferes with the orderly process of litigation and may make a fair trial unlikely, California courts have inherent power to dismiss civil cases for unreasonable, inexcusable delay in prosecution. [Citation]. Second, because courts should hear only actual disputes, and should prevent harassment of defendants, California courts possess the inherent authority to dismiss cases that are fraudulent or ‘vexatious.’ [Citation].” (Stephen Slesinger, Inc. v. Walt Disney Co. (2007) 155 Cal.App.4th 736, 758 [66 Cal.Rptr.3d 268, 286] disapproved of on other grounds by City of Los Angeles v. PricewaterhouseCoopers, LLP (2024) 17 Cal.5th 46, 63.) Additionally, “it is now well established that the policy [of preferring to dispose litigation on the merits] only comes into play when a plaintiff makes a showing of some excusable delay.” (Van Keulen v. Cathay Pacific Airways, Ltd. (2008) 162 Cal.App.4th 122, 131.)

LAUSD and Diment move for an order dismissing the operative Complaint in this instant case on the grounds that Plaintiff has displayed an unwillingness to meaningfully engage in any part of the litigation process to prosecute his claims. Specifically, LAUSD and Diment contend that Plaintiff has not responded to their counsel's communication attempts, propounded discovery, and failed to oppose or appear at the discovery hearings. (Mot. at 4:11-15.)

In accordance with the discretionary dismissal statutes, the Court cannot dismiss an action for unreasonable delay unless: (1) service of the summons and complaint has not been made within two years [Code of Civil Procedure Section 583.420, subdivision (a)(1)]; (2) Plaintiff has failed to bring the case to trial within three years after the action was commenced [Code of Civil Procedure Section 583.420, subdivision (a)(2)(A)]; (3) Plaintiff has failed to bring the case to trial within two years after the action was commenced because of the condition of the court calendar or for other reasons affecting the conduct of litigation or the administration of justice [Code of Civil Procedure Section 583.420, subdivision (a)(2)(B)]; or (4) Plaintiff has failed to bring the case to trial after a new trial was granted [Code of Civil Procedure Section 583.420, subdivision (a)(3)].

Although LAUSD and Diment do not

specify which subdivision they seek relief under, LAUSD and Diment generally appeared in this matter by filing their respective Answers to the Complaint, so there was no issue with service of the summons and complaint per subdivision (a)(1). (LAUSD Answer, 6/2/25; Diment Answer, 4/10/26.) Similarly, the initial trial is set for March 29, 2027, so has not taken place as of yet, therefore, subdivision (a)(3) would not apply in this present lawsuit either. However, this case was filed a year and seven months ago, thus subdivision (a)(2)(B) is applicable. (Compl., 2/3/25.) During the one year and seven months that this action was commenced against LAUSD and Diment, Plaintiff has failed to actively participate in litigating this case. LAUSD and Diment has submitted evidence showing that Plaintiff was properly served with discovery requests; Plaintiff failed to provided responses and participate in motion practice involving the discovery requests resulting the motions being granting in their favor; and Plaintiff failed to respond to schedule his deposition. (Fajardo Decl., ¶¶5-15, Exs. D-M.) Notably, Plaintiff has not opposed this instant motion despite being electronically served with the moving papers and supporting documents.

III.

Conclusion

Accordingly, Defendants Los Angeles Unified School District and Dina Diment's Motion to Dismiss Action for Failure to Prosecute is GRANTED.

Defendants Los Angeles Unified School District and Dina
Diment to give notice.